

Court No. - 29

Case :- WRIT - C No. - 29510 of 2019

Petitioner :- Harishankar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Chand Saroj

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Ms. Usha Kiran, learned counsel for the respondents No. 3 to 5.

The argument of counsel for the petitioner is that the impugned demand is illegal as the petitioner is not having any electric connection.

Ms. Usha Kiran, learned counsel submits that that the petitioner is having electric connection which has also been energised and in fact the demand raised against the petitioner is in connection with unauthorised use of electricity.

In view of above, we direct her to seek instructions if before making the said demand any provisional assessment was done and a copy of it was served upon the petitioner.

She may seek instructions within three days.

Put up on Thursday i.e.26.09.2019.

Order Date :- 23.9.2019

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Chand Saroj

Counsel for Respondent :- C.S.C., Suman Kumar Yadav, Usha Kiran

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard learned counsel for the petitioner and Ms. Usha Kiran for contesting respondent.

The petitioner has preferred this petition challenging the demand notice dated 25.09.2018 whereby a sum of Rs.56,856/- are being recovered as electricity dues from the petitioner.

Ms. Usha Kiran submits that the aforesaid demand is on the basis of use of electricity by the petitioner which he defaulted in payment despite raising the bills in that regard.

Learned counsel for the petitioner submits that the petitioner is not having any electricity connection and as such, the demand is per se illegal.

In case the demand is illegal, the petitioner may approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within a period of 15 days from today. In case, he so approaches the Executive Engineer, he shall examine the matter, and on verification of the correct facts shall pass speaking order in regard to the liability of the petitioner to pay the aforesaid dues in accordance with law most expeditiously if possible within a period of six weeks from the date of submission of representation. For a period of three months or till the representation is considered and decided whichever is earlier, no recovery shall be made from the petitioner in pursuance of the impugned demand notice.

The writ petition is ***disposed off***.

Order Date :- 26.9.2019

S.Sharma